

[doc. web n. 10102355]
Decision of December 12, 2024
Register of Decisions
n. 768 of December 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTER Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX complained about the online publication
on the website of the Municipality of Corte Franca (hereinafter "Municipality"), where he has provided
his
work activity, of Resolution No. XX of XX

containing his personal data, in particular, the information regarding the acknowledgment of his resignation, the data related to his qualification, the date of his last working day, the hours worked, and the office of belonging. The aforementioned resolution was easily viewable and downloadable through common search engines, by simply typing the complainant's name and surname.

The publication of the resolution in question and its indexing on common search engines were verified by the Office on XX. The Office also represented to the Municipality that there was no record of the communication of the contact details of the Data Protection Officer (hereinafter, "DPO"), as required by Article 37, paragraph 7 of the Regulation.

2. The investigative activity.

With a note dated XX, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, par. 2, of the Regulation, for having disseminated online the resolution No. XX of XX containing numerous personal data of the complainant, in particular, in addition to the identifying data (name and surname) of the complainant, his office of belonging, the data related to his qualification, the hours worked, the date of his last working day, and the indication of the acknowledgment of his resignation, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code. The absence of the communication of the contact details of the DPO was also noted, in violation of Article 37 of the Regulation.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX, the Municipality, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

- "on XX the Entity activated a new application platform for the management of administrative transparency. Following the recovery of data from the previous platform, the system probably published the resolution G.C. of XX No. XX in the session of administrative transparency." Only the person who has ceased their service is involved in the violation";
- "it is presumed that it was not the intention of the operators at the time to violate the rules of publication of a colleague's data. It is presumed that the resolution was published according to an incorrect procedure of the Transparent Administration and following the change of the Application Platform";
- "the Entity has proceeded to immediately remove the act in question from the transparency portal through communication to the software

house and to the DPO. The removal of the act from the DOCPLAYER Platform has also been requested”;

- “the Municipality [...] became aware of the violation following the communication from the Guarantor Authority which received the report from the interested party.”

3. Outcome of the investigative activity. The applicable regulations.

****The Discipline of Personal Data Protection****

provides that public entities, even when acting in the performance of their duties as employers, may process the personal data of workers if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided for by national sector regulations (Articles 6, paragraph 1, letter c), 9, paragraphs 2, letter b), and 4, and 88 of the Regulation) or "for the performance of a task carried out in the public interest or in connection with the exercise of public powers vested in the data controller" (Article 6, paragraph 1, letter e), of the Regulation).

More generally, European legislation provides that "Member States may maintain or introduce more specific provisions to adapt the application of the rules of this regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]" (Article 6, paragraph 2 of the Regulation). In this regard, it is highlighted that the operation of disseminating personal data (such as online publication) by public entities is permitted only when provided for by a legal norm or, in cases provided by law, by regulation (Article 2-ter of the Code).

The data controller is required to respect, in any case, the principles regarding data protection (Article 5 of the Regulation).

****3.1. The Dissemination of Personal Data.****

From the elements acquired and the facts emerged during the investigative activity, it has been established that the Municipality published on its institutional website resolution no. XX of XX, easily viewable and downloadable even through common search engines, containing numerous personal data of the complainant, in particular, in addition to the identifying data (name and surname), the office to which the complainant belongs, data concerning their qualification, hours worked, the date of the last working day, and the indication of acknowledgment of their resignation, in violation of Articles 5 and 6 of the Regulation and 2-ter of the Code.

Furthermore, the absence of communication of the contact details of the DPO has been noted, in violation of Article 37 of the Regulation.

In this regard, while confirming that the regulatory framework regarding personal data protection requires for any processing operation (Article 4, point 2 of the Regulation), including dissemination (Article 2-ter, paragraph 4, letter b) of the Code), the necessity of having an appropriate legal basis, it is recalled that the Authority has provided guidance since 2007 regarding the prerequisites (and the occurrence of these, the specific modalities) for the lawful publication of acts and documents containing personal data of employees, specifying, in particular, that it is not lawful to disseminate personal information related to individual workers, concerning, as in the present case, data related to the qualification of the interested party, the office to which they belong, hours worked, the date of the last working day, and the indication of acknowledgment of their resignation (see paragraph 6.3 of the "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector" of June 14, 2007, web doc no. 1417809; see also provision of May 15, 2014, no. 243 "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities" web doc no. 3134436).

During the investigation, the Municipality represented that it had "activated a new application platform for the management of administrative transparency. Following the recovery of data from the previous platform, the system likely published the G.C. resolution of XX in the session of administrative transparency," relating the scope of the processing in question to the fulfillment of publication obligations for the purpose of "transparency." However, this regulation does not establish anything regarding the publication of the resolution subject to this investigation containing information related to the complainant's employment relationship.

The Authority has clarified on numerous occasions that even the presence of a specific publicity regime cannot entail any automatism regarding the online dissemination of personal data and information, nor a derogation from the principles regarding personal data protection (see, among many, the latest provision of July 4, 2024, no. 404, web doc 10050145 and previous ones cited therein).

Therefore, even regarding the publication in the "Transparent Administration" section of the institutional website, the Municipality must always verify, based on a responsible and careful assessment, which data and information to publish in accordance with the sector regulations that govern the methods, times, and forms of publicity.

In numerous decisions regarding the obligations arising from Article 124 of Legislative Decree 267/2000, the Authority has reiterated that all the limits provided by the principles of personal data protection also apply to publications in the online Albo Pretorio of acts or resolutions, primarily considering the existence of suitable prerequisites for the lawfulness of the online dissemination of the personal data contained therein, even before any potential minimization of the same. This is also confirmed by the personal data protection system contained in the Regulation, under which the data controller must implement "appropriate technical and organizational measures to

****3.1 The publication of personal data without a suitable legal basis.****

It is necessary to "ensure that only the personal data necessary for each specific purpose of processing are processed by default" and must be "able to demonstrate" – in light of the principle of "accountability" – that this has been done (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation). Therefore, where the online publication of documents involves the processing of personal data and thus their dissemination, the needs for publicity pursued must be appropriately balanced with the rights and fundamental freedoms, as well as the dignity of the data subject, with particular reference to confidentiality, personal identity, and the right to the protection of personal data, prioritizing the existence of a suitable legal basis for the dissemination of data (see, most recently, provisions no. 366 of November 10, 2022, web document no. 9834986 and no. 299, of September 15, 2022, web document no. 9815665).

In light of the above, the publication by the Municipality on its institutional website of resolution no. XX of XX, viewable and downloadable also through common search engines, containing numerous personal data of the complainant, in particular, in addition to the identifying data (name and surname) of the complainant, the office of belonging, the data concerning their qualification, the hours worked, the date of the last working day, and the indication of acknowledgment of their resignation, has led to a dissemination of the complainant's personal data in the absence of a suitable legal basis, in violation of Articles 5, 6 of the Regulation, as well as 2-ter of the Code.

****3.2 The delay in communicating the contact details of the DPO to the Authority.****

Pursuant to Article 37, paragraph 7, of the Regulation, "the data controller [...] publishes the contact details of the data protection officer and communicates them to the supervisory authority" (see paragraph 2.6 of the "Guidelines on Data Protection Officers," adopted by the Article 29 Working Party on April 5, 2017, WP 243 rev. 01, endorsed by the European Data Protection Board with "Endorsement 1/2018," as well as paragraph 7 of the "Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector," attached to provision of April 29, 2021, no. 186, web document no. 9589104).

In this regard, during the investigation, it was established that the communication of the contact details of the DPO to the Authority occurred only on date XX and, therefore, until that date, the Municipality

acted in violation of Article 37, paragraph 7, of the Regulation.

****4. Conclusions.****

In light of the assessments mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure pursuant to the combined provisions of Articles 11 and 14 of the Regulation of the Guarantor no. 1/2019.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the Municipality's conduct is noted, for having acted in violation of Articles 5, 6, and 37, paragraph 7, of the Regulation, as well as 2-ter of the Code.

The violation of the aforementioned provisions occurred as a result of two distinct conducts, relating to the dissemination of personal data (see paragraph 3.1) and the failure to communicate the contact details of the DPO (see paragraph 3.2).

****5. Warning (Article 58, paragraph 2, letter b), of the Regulation).****

The Guarantor, pursuant to Article 58, paragraph 2, letter b), of the Regulation, has the power to "issue warnings to the data controller or the processor where the processing has violated the provisions of the [...] regulation."

Regarding the case at hand, the late communication to the Authority of the contact details of the DPO (see paragraph 3.2) can be considered a single and distinct conduct.

That said, it is necessary to take into account certain elements, including contextual ones, that emerged during the investigation, which are essential for the concrete assessment of the extent of the violations found and the harmfulness of the overall conduct (see recital 148 of the Regulation).

In particular, considering that:

- the Municipality is a small entity (approximately 7,000 inhabitants);
- the violation, while negatively impacting the possibility for the Authority to contact the DPO easily and directly, emerged following investigations ordered by the Authority ex officio and no complaints or reports regarding the failure to communicate the contact details of the DPO to the data subjects have been received;

the circumstances of the specific case lead to qualifying it as a "minor violation," pursuant to recital 148, Article 83, paragraph 2, of the Regulation and the "Guidelines on the application and imposition of administrative fines under Regulation (EU) No. 2016/679," adopted by the Article 29 Working Party on October 3, 2017, WP 253, and endorsed by the European Data Protection Board with "Endorsement 1/2018" of May 25, 2018.

In light of all the above and the overall terms of the matter at hand, it is therefore deemed sufficient to warn the Municipality for the violation of Article 37, paragraph 7, of the Regulation.

In this context, considering that the conduct has exhausted its effects, the conditions for the adoption of further measures do not exist.

corrective measures referred to in Art. 58, par. 2, of the Regulation.

It is noted, finally, that the conditions referred to in Art. 17 of Regulation No. 1/2019 are met.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Arts. 58, par. 2, lett. i and 83 of the Regulation; Art. 166, par. 7, of the Code). The Authority, pursuant to Arts. 58, par. 2, lett. i) and 83 of the Regulation as well as Art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, par. 7, of the Code" (Art. 16, par. 1, of the Regulation of the Authority No. 1/2019).

In this specific case, the Municipality has engaged in a distinct sanctionable conduct, additional to the conduct referred to in the previous par. 5, which must be considered separately for the purposes of quantifying the administrative sanction to be applied as illustrated below.

In this regard, taking into account Art. 83, par. 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Art. 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Art. 83, par. 2, of the Regulation.

Considering that:

the dissemination of personal data concerns only one data subject, although the publication of the resolution occurred for an excessively long period and is viewable on common search engines (cf. Art. 83, par. 2, lett. a), of the Regulation);

the conduct of the Municipality is of a negligent nature considering that the Municipality has stated that the contested resolution was published “according to an incorrect procedure of the Transparent Administration” (cf. Art. 83, par. 2, lett. b), of the Regulation);

the publication did not concern personal data belonging to the special categories referred to in Art. 9 of the Regulation or data relating to criminal convictions or offenses (cf. Art. 83, par. 2, lett. g), of the Regulation),

it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, “Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR” of May 24, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

no previous relevant violations have been committed by the data controller, having the same nature as those established in relation to the complaint facts, or previous measures referred to in Art. 58 of the Regulation (Art. 83, par. 2, lett. e), of the Regulation);

the Municipality has offered good cooperation with the Authority during the investigation (see Art. 83, par. 2, lett. f), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €6,000 (six thousand) for the violation of Arts. 5 and 6 of the Regulation, as well as 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to Art. 166, par. 7, of the Code and Art. 16, par. 1, of the Regulation of the Authority No. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the specific circumstance that resolution No. XX of XX, although referring to a single data subject, was published online for a significant period of time (approximately 10 years).

In this context, considering, in any case, that the conduct has exhausted its effects, since the Municipality, as soon as it became aware of the violation following the notification from the Authority (note of XX), proceeded to remove resolution No. XX of XX from its institutional website, the conditions for the adoption of further corrective measures referred to in Art. 58, par. 2, of the Regulation do not exist.

It is noted, finally, that the conditions referred to in Art. 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to Arts. 57, par. 1, lett. f) and 83, of the Regulation, finds the unlawfulness of the processing carried out by the Municipality of Corte Franca for violation of Arts. 5 and 6 of the Regulation, as well as 2-ter of the Code, in the terms stated in the reasoning;

pursuant to Art. 58, par. 2, lett. b) of the Regulation, admonishes the Municipality for having violated Art. 37, par. 7, of the Regulation, as described above

ORDERS

the Municipality of Corte Franca, represented by the legal representative pro tempore, with registered office at Piazza Di Franciacorta 1 - 25040 Corte Franca (BS) - C.F. 00789430170, to pay the sum of €6,000 (six thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning;

ORDER

to the aforementioned Municipality, in the event of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €6,000 (six thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981. It is noted that, pursuant to Article 166, paragraph 8, of the Code, the offender retains the option to resolve the dispute by making a payment—always according to the methods indicated in the annex—of an amount equal to half of the imposed sanction within the deadline set forth in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

ORDERS

- a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;
- b) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the website of the Authority;
- c) pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi